

# M/S Abhinav Steels Ltd. v. Purvanchal Vidyut Vitaran Nigam Ltd. & 2 Others

Allahabad High Court · Division Bench · 6 March 2018 · Writ - C No. 62777 of 2015 · **Writ petition dismissed on the ground of alternative remedy; billing dispute relegated to Clause 6.5 Forum and Ombudsman**

## HEADNOTE

Where a consumer challenges electricity bills by which the distribution licensee demands electricity charges, and counsel cannot dispute that Clause 6.5 of the U.P. Electricity Supply Code, 2005 supplies a statutory alternative remedy of raising the dispute before the District Redressal Forum, with a further remedy before the Ombudsman if full relief is not obtained there, the writ court will not entertain a dispute relating to electricity charges in extraordinary jurisdiction under Article 226. The petitioner is relegated to that statutory course and the writ petition is dismissed on the ground of alternative remedy. The Court did not examine the bills on merits.

## FACTUAL SUMMARY

M/s Abhinav Steels Ltd. filed Writ-C No. 62777 of 2015 in the Allahabad High Court against Purvanchal Vidyut Vitaran Nigam Ltd. and two others, challenging electricity bills by which the distribution licensee demanded electricity charges. The petition was listed from 7 December 2015. Counsel for the Power Corporation was informed of the first listing; appearance was entered; three weeks were allowed for a counter affidavit to the writ and a supplementary affidavit, with a rejoinder thereafter. After adjournments through late 2017, including for counsel's reported adjournments, a rejoinder was taken on record. On 6 March 2018 the Division Bench heard the petition after the pleadings had closed.

## HOLDING-UNITS

### HOLDING-UNIT · UP-2005::6.5

disputed electricity bills — Clause 6.5 Forum then Ombudsman as alternative remedy to writ

#### QUESTION

Where electricity bills demanding charges are challenged in a writ, and a statutory alternative remedy under Clause 6.5 of the Supply Code, 2005 (Forum, then Ombudsman) is available, should Article 226 be exercised?

#### HOLDING

No. After some argument, counsel for the petitioner could not dispute that the consumer has a statutory alternative remedy of disputing electricity bills demanding charges by raising the dispute before the District Redressal Forum under Clause 6.5 of the Electricity Supply Code, 2005, and, if full relief is not obtained there, a further remedy before the Ombudsman. A dispute relating to electricity charges is not to be entertained in extraordinary jurisdiction under Article 226. The writ petition is dismissed on the ground of alternative remedy. ¶ 1-3

#### QUALIFIER

Counsel for the petitioner could not dispute the availability of the Clause 6.5 Forum (and Ombudsman) route.

**FLAG** The Court described Clause 6.5 as a complaint to the 'District Redressal Forum', with a further Ombudsman remedy. Clause 6.5 of the 2005 Code is the billing-complaint route (typically to the Executive Engineer); the Consumer Grievance Redressal Forum and Ombudsman sit under Electricity Act, 2003 ss.42(5)–42(6) / CGRF regulations. Recorded as stated, not silently corrected. Source PDF compiles listing sheets from 7.12.2015 to 22.12.2017 plus the 6.3.2018 disposal; pins refer to that disposal. Coram is the disposing bench.

## PRINCIPLE TAGS

**clause-6.5-alternate-remedy-to-writ** The Division Bench refused to entertain a writ disputing electricity bills and charges under Article 226, dismissed the petition on the ground of alternative remedy, and relegated the consumer to Clause 6.5. ¶ 1-3

**clause-6.5-statutory-remedy-disputed-bill**

Counsel could not dispute that Clause 6.5 of the U.P. Electricity Supply Code, 2005 is the statutory path for disputing electricity bills issued by the licensee demanding electricity charges. ¶ 1-2

**cgrf-ombudsman-alternative-remedy**

The Court treated the Clause 6.5 course as a dispute before the District Redressal Forum, with a further Ombudsman remedy if full relief is not obtained there, and dismissed the writ on that stacked alternative remedy. ¶ 1-3

#### NOT DECIDED — NEGATIVE AUTHORITY

##### NOT DECIDED — CORRECTNESS AND QUANTUM OF THE ELECTRICITY BILLS AND CHARGES DEMANDED

Not examined. The writ was dismissed on alternative remedy; the consumer was left to the Clause 6.5 Forum and, if needed, the Ombudsman. ¶ 1-3

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*A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.*